

Terms & Conditions Relating to Digital Wallets

(Version 1.0, Date 28.02.2020)

This document sets out additional terms and conditions (the “Terms”) that are applicable when you choose to add a N26 Debit Card (“N26 Card”) to a Digital Wallet (the “Wallet”), “you” and “your” refer to the cardholder of the N26 Card, and “we”, “us”, “our” and “N26” refer to the issuer of your N26 Card. Digital Wallets include Apple Pay and Google Pay amongst others.

When you add a N26 Card to the Wallet, you agree to the following Terms:

1. Adding Your N26 Card

You can add an eligible N26 Card to the Wallet by following the instructions of the Wallet provider. Only N26 Cards that we indicate as eligible can be added to the Wallet. N26 reserves the right to exclude certain N26 cards or underlying accounts from the Wallet eligibility at its own reasonable discretion. When you add a N26 Card to the Wallet, it allows you to use the N26 Card for transactions where the Wallet is accepted. The Wallet may not be accepted in all places where your N26 Card is accepted.

2. Your N26 Card Terms Do Not Change

The terms and account agreement applied to your N26 Card (Terms and Conditions for Private and Business MasterCard Debit Cards) do not change when you add your N26 Card to the Wallet. The Wallet just provides another way for you to make purchases with the N26 Card. Any applicable interest, fees, and charges that apply to your N26 Card will also apply when you use the Wallet to access your N26 Card. N26 does not charge you any additional fees for adding your N26 Card to the Wallet or using your N26 Card in the Wallet. The Wallet provider and other third parties such as wireless companies or data service providers may charge you fees.

3. N26 Is Not Responsible for the Wallet

N26 is not a Wallet provider and therefore is not responsible for providing or maintaining the Wallet service. We are only responsible for secure data provision to the Wallet provider to allow the N26 Card usage through the Wallet. We are not responsible for any failure of the Wallet or the inability to use the Wallet for any transaction. We are not responsible for the performance or non-performance of the Wallet provider or any other third parties regarding any agreement you enter into with the Wallet provider or associated third-party relationships that may impact your use of the Wallet.

4. Instant Issuing

N26 reserves the right to allow you to add your N26 card to your Wallet before receiving the physical card. However, the following rules apply to new account holders before activating your physical N26 card: Wallet transactions are limited to (i) 30,00 EUR per transaction and (ii) 150,00 EUR maximum spending limit per day; (iii) ATM withdrawals as well as Cash26 use are disabled.

If the physical card is not activated within 14 days after ordering, all subsequent Wallet transactions will be rejected. To continue using the Wallet normally, you must first activate your physical card.

5. Removing Your N26 Card from the Wallet

You should contact the Wallet provider on how to remove a N26 Card from the Wallet. We can also block a N26 Card in the Wallet from purchases at any time.

6. Governing Law and Disputes

These Terms are governed by the law of the country as set out in the General Terms and Conditions “N26 Current Account”. Disputes arising out of or relating to these Terms will be subject to any dispute resolution procedures in your N26 Card agreement.

7. Ending or Changing these Terms; Assignments

We can terminate these Terms at any time. We can also change these Terms, or add or delete any items in these Terms, at any time. We will provide notice if required by law. We can also assign these Terms. You cannot change these terms, but you can terminate these Terms at any time by removing all N26 Cards from the Wallet. You may not assign these Terms.

8. Privacy

Your privacy and the security of your information are important to us. The privacy policy applies to your use of your N26 Card in the Wallet. You agree that we may share your information with the Wallet provider, a payment network, and others in order to provide the services you have requested, to make information available to you about your N26 Card transactions, and to improve our ability to offer these services. This information helps us to add your N26 Card to the Wallet and to maintain the Wallet. N26 and the Wallet provider process personal data separately and on their own responsibility. Therefore, N26 and the Wallet provider both act as controllers. We do not control the privacy and security of your information that may be held by the Wallet provider and that is governed by the privacy policy given to you by the Wallet provider. The data may be transferred outside the EEA into the U.S. depending on the service used. This lies in the Wallet provider’s sole responsibility.

9. Notices

We can provide notices to you concerning these Terms and your use of a N26 Card in the Wallet by posting the material on our website, through electronic notice given to any electronic inbox we maintain for you or to any other email address or telephone number you provide to us, or by contacting you at the current address we have on file for you. You can find the relevant contact information in the N26 Support Center on our website.

10. Questions

If you have any questions, disputes, or complaints about the Wallet, contact the Wallet provider using the information given to you by the provider. If your question, dispute, or complaint is about your N26 Card, then contact us using the relevant contact information in the N26 Support Center on our website.